



COUNCIL COMMUNICATION

TO:	Mayor and Council
FROM:	Dorothy Hargrove
DEPARTMENT:	City Manager's Office
DATE:	August 5, 2019
SUBJECT:	Englewood Employee Association Collective Bargaining Contract, 2020-2022

DESCRIPTION:

Englewood Employee Association Collective Bargaining Contract, 2020-2022

RECOMMENDATION:

Approval, by motion, of the attached Collective Bargaining Agreement endorsed by the Englewood Employee Association membership for fiscal years 2020 - 2022.

SUMMARY:

The Englewood Home Rule Charter, Article XV, 137.1 states: "It is the public policy of the people of the City of Englewood to promote harmonious, peaceful and cooperative relationships between the elected and appointed officials of the City and the members of the classified services..." Negotiations between the Association leadership and the City administration were held during the month of June. Agreements were reached on all points and the final document was approved by a majority vote of the members of the Englewood Employee Association. This contract ensures a fair, competitive and attractive package for City employees and meets the fiscal and management requirements of the City. All parties were pleased that the expense, time and uncertainty of potential arbitration would be avoided by timely approval of this contract.

ANALYSIS:

Key points of this agreement include:

- Three (3) year term, ensuring fiscal and administrative continuity and eliminating the time and expense of biennial negotiations
- Consolidation of various leave programs into a comprehensive Paid Time Off structure, consistent with other employee groups in the City
- Limitation on the total amount of accumulated leave and associated expenses when employees retire or leave the City for other employment
- Standardization of an annual wage increase for predictability in budgeting, recruitment and retention of employees.
- Clarification of grievance procedures

FINANCIAL IMPLICATIONS:

The personnel expenses associated with this contract are consistent with past expenditures and will be incorporated into the 2020 General Fund budget.

CONCLUSION:

Approval, by motion, of the attached Collective Bargaining Contract endorsed by the Englewood Employee Association membership.

ATTACHMENTS:

EEA Collective Bargaining Agreement

COLLECTIVE BARGAINING AGREEMENT BETWEEN
THE CITY OF ENGLEWOOD, COLORADO
and
THE ENGLEWOOD EMPLOYEES ASSOCIATION

JANUARY 1, 2020 - DECEMBER 31, 2022

TABLE OF CONTENTS

			PAGE
ARTICLE	1	INTRODUCTION & DEFINITIONS	1
ARTICLE	2	DURATION OF CONTRACT	3
ARTICLE	3	RECOGNITION	3
ARTICLE	4	EMPLOYEE RIGHTS	4
ARTICLE	5	HOURS OF WORK	4
ARTICLE	6	OVERTIME WORK, OVERTIME PAY & COMPENSATORY TIME OFF	5
ARTICLE	7	ACTING PAY	6
ARTICLE	8	COMPENSATION	6
ARTICLE	9	LONGEVITY COMPENSATION	6
ARTICLE	10	DIFFERENTIAL PAY	7
ARTICLE	11	PAID TIME OFF	8
ARTICLE	12	SICK LEAVE AND SALARY CONTINUATION	10
ARTICLE	13	WORKERS COMPENSATION	13
ARTICLE	14	MILITARY LEAVE	13
ARTICLE	15	FUNERAL LEAVE	14
ARTICLE	16	JURY DUTY AND WITNESS SERVICE	14
ARTICLE	17	HOLIDAYS, HOLIDAY PAY & ENHANCED HOLIDAY PAY	15
ARTICLE	18	UNIFORM ALLOWANCE	16

ARTICLE	19	TUITION REIMBURSEMENT/DEGREE ACHIEVEMENT RECOGNITION	16
ARTICLE	20	LIFE INSURANCE	17
ARTICLE	21	INSURANCE	17
ARTICLE	22	RETIREE HEALTH INSURANCE ASSISTANCE	18
ARTICLE	23	PENSION/RETIREMENT PLANS	18
ARTICLE	24	LAYOFF	18
ARTICLE	25	LEAVE OF ABSENCE (WITHOUT PAY)	19
ARTICLE	26	GRIEVANCE PROCEDURE	19
ARTICLE	27	CORRECTIVE SUPERVISION	22
ARTICLE	28	EEA DUES DEDUCTION	23
ARTICLE	29	ASSOCIATION ACTIVITIES	24
ARTICLE	30	STANDBY PAY	24
ARTICLE	31	CALL BACK PAY	25
ARTICLE	32	LABOR MANAGEMENT COMMITTEE	25
ARTICLE	33	EXCLUSIVENESS OF CONTRACT	25

ARTICLE 1. INTRODUCTION & DEFINITIONS

I. INTRODUCTION

This Contract, entered into by the City of Englewood, Colorado, and the Englewood Employees Association, has as its purpose the promotion of harmonious relations between the City and its Employees, a fair and peaceful procedure for the resolution of differences, and the establishment of rates of pay, hours of work, and other conditions of employment as set out in the City Charter.

Except where limited by express provisions elsewhere in this Contract, nothing in this Contract shall be construed to restrict, limit, or impair the rights, powers, and authority of the City as granted to it under the laws of the State of Colorado, the Charter, and the Municipal Code. Those rights, powers, and authority include, but are not limited to, the following:

- A. To determine the overall mission of the City as a unit of government.
- B. To maintain and improve the efficiency and effectiveness of City operations.
- C. To determine the services to be rendered, the operations to be performed, the technology to be utilized, or the matters to be budgeted.
- D. To determine the overall methods, processes, means, job classifications, or personnel by which City operations are to be conducted.
- E. To direct, supervise, hire, promote, transfer, assign, schedule, retain, or lay-off Employees.
- F. To suspend, discipline, discharge, or demote for just cause, all full-time, permanent, classified Employees.
- G. To relieve Employees from duties because of lack of work or funds, or under conditions where the City determines continued work would be inefficient or non-productive.
- H. To take whatever other actions may be necessary to carry out the wishes of the public not otherwise specified herein or limited by this Contract.
- I. To take any and all actions to carry out the mission of the City in cases of emergency.

Nothing contained herein shall preclude the City from conferring with its Employees for purposes of developing policies to effectuate or implement any of the above-enumerated rights.

The City retains the right to change any past practice, so long as that change is not in violation of this Contract. In the event the City desires to amend or delete a past practice, the City will provide reasonable, advance, written notice of the intended change to the EEA. The Association shall have the right to grieve any change in practice that violates this Contract.

II. DEFINITIONS

For purposes of this Contract:

A. **Administrative Policy Manual** means the Administrative Policy Manual of the City of Englewood, Colorado, as updated September 2017, and as thereafter revised from time to time.

B. **Charter** means the Home Rule Charter of the City of Englewood, Colorado.

C. **City** means the City of Englewood, Colorado.

D. **Conclusion Date** means December 31, 2022.

E. **Contract** means the Collective Bargaining Agreement between the City of Englewood, Colorado and the Englewood Employees Association for the period commencing on January 1, 2020 and concluding on December 31, 2022.

F. **EEA** means the Englewood Employees Association in its capacity as the exclusive bargaining representative of the Employees covered by this Contract.

G. **Effective Date** means January 1, 2020.

H. **Employee** means a full-time, classified employee of the City covered by the Contract.

I. **Immediate Family Member** means an Employee's spouse or domestic partner, or the children, step-children, foster children, grandchildren, parents, grandparents, brother, or sister of the Employee, or of the Employee's spouse or domestic

partner.

J. **Municipal Code** means the Englewood Municipal Code 2000, as amended from time to time.

K. **Parties** means, collectively, the City and the EEA.

L. **Prior Contract** means the Collective Bargaining Agreement between the City of Englewood, Colorado and the Englewood Employees Association for the period commencing on January 1, 2018 and concluding on December 31, 2019.

ARTICLE 2. DURATION OF CONTRACT

This Contract will take effect on the Effective Date, and shall continue in force through and including the Conclusion Date.

A. Nothing in Article 2 (A), above, shall limit, prohibit, or in any way effect the operation of Article 11 of this Contract, in which the City agrees to make certain payments related to accrued, but unused, PTO. The Parties acknowledge and agree that those provisions of Article 11 shall survive the termination of this Contract.

B. This Contract, or any part of it, may be terminated or renegotiated at any time by mutual consent of the Parties.

C. If any article or section of this Contract should be held invalid by operation of law, or by any Court of competent jurisdiction, or if compliance with or enforcement of any article or section should be restrained by such Court, the remainder of this Contract shall not be affected thereby and this Contract shall remain in full force and effect, and the Parties shall promptly meet and negotiate for the purpose of attempting to arrive at a mutually satisfactory replacement for such article or section.

D. The Parties understand that the provisions of this Contract shall in no way displace or modify present or future statutory or case law of the State of Colorado.

E. The Parties acknowledge that during negotiations which resulted in this Contract, each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter appropriate for Contract negotiations and that the understandings and agreements arrived at by the Parties after this exercise of that right and opportunity are set forth in the Contract.

ARTICLE 3. RECOGNITION

The City recognizes the EEA as the sole organization certified pursuant to the provisions of the Charter as the exclusive representative for the Employees within the following bargaining unit:

Included: All full-time, classified Employees of the City.

Excluded: All Supervisory, Managerial, Confidential, and Contractual Employees, each as defined by the Charter; all part-time, temporary, and seasonal employees; all employees hired through the use of Federal, State, or other outside funding sources for special projects or programs, and all others who may be determined to be excluded prior to or during the term of this Contract as provided under the Charter.

ARTICLE 4. EMPLOYEE RIGHTS

An Employee, who is not excluded per Article 3 (Recognition) of this Contract, shall have the right:

A. To form, join, support, or participate in, or to refrain from forming, joining, supporting, or participating in, the EEA or its lawful activities, and to bargain collectively through the EEA.

B. To be accompanied by an EEA representative during any meeting that may lead to discipline.

C. The City is obligated to advise an Employee in advance that a meeting may lead to discipline.

D. The EEA has no right to attend such meetings unless an Employee requests that an EEA representative be present.

E. No Employee shall be interfered with, restrained, coerced, or discriminated against because of the exercise of these rights and the right of an Employee to discuss employment concerns with the City shall not be infringed upon.

ARTICLE 5. HOURS OF WORK

All departments, functions, and activities shall observe office and working hours necessary for the efficient transaction of their respective services.

A. All Employees shall regularly work at least forty (40) hours per week. The

work week shall consist of five (5) eight-hour shifts, or other work schedules as determined by the department director per the City's "Modified Workweek Schedules" policy set forth in the Administrative Policy Manual. All Employees shall be scheduled to work a regular work schedule and each shift shall have a regular starting and quitting time. Should the work schedule be changed, affected Employees will be notified 24 hours in advance, except in the case of an emergency as determined by the department director.

B. Employees shall be entitled to two (2) paid rest periods not to exceed fifteen (15) minutes, or one thirty (30) minute rest period, for each shift worked. Rest periods shall be under the control of the supervisor or department director.

C. When possible, Employees who work beyond their regular quitting time into an overtime situation will be eligible for a fifteen (15) minute rest period before they begin the overtime work. When possible, additional rest periods will be granted under the control of the supervisor or department director similar to rest periods granted under paragraph B, above.

D. When necessary, Employees shall be granted a fifteen (15) minute personal clean-up period prior to the end of each shift. The clean-up period shall be under the control of the supervisor or department director.

E. All Employees will be granted an unpaid lunch period during each shift. As a normal occurrence, this lunch break will commence between the beginning of the third hour and the beginning of the sixth hour of the shift. An Employee and supervisor may agree to waive this time limit due to work related or personal issues.

F. See Administrative Policy Manual, Policy 2.3 (Overtime, Compensatory Time, Administrative Time) and Policy 2.4 (Meal and Rest Breaks) for further clarification.

ARTICLE 6. OVERTIME WORK, OVERTIME PAY & COMPENSATORY TIME OFF

A. For all Employees, except as specified below, duties performed at the City's direction during hours that exceed the Employee's scheduled work hours shall constitute Overtime Work.

B. FLSA non-exempt Employees shall be compensated for Overtime Work at the rate of:

1. one and one-half (1.5) times the Employee's regular rate of pay for each hour, or fraction of an hour, the Employee devoted to Overtime Work ("Overtime Pay"); or

2. At the discretion of the Employee's department director, and in place of cash overtime pay, Compensatory Time Off, computed at the rate of one and one-half (1.5) times the number of hours, or fraction of an hour the Employee devoted to Overtime Work.

C. Compensatory Time Off and other forms of paid leave do not constitute Overtime Work.

D. An Employee may accumulate a maximum of forty-eight (48) hours of Compensatory Time Off at any given time. An Employee who has reached this maximum accumulation must receive cash overtime payments for any additional Overtime Work.

E. An Employee's use and, within the maximum set forth above, accumulation, of Compensatory Time Off is at the discretion of the Employee's department director.

F. The City retains the right to assign Overtime Work to any Employee qualified to perform the work.

ARTICLE 7. ACTING PAY

All persons appointed to an acting position, at the sole discretion of the Director, will be compensated at the minimum rate of the acting position pay range, or 5% above the Employee's current rate of pay, whichever is greater. The Employee must be in an acting capacity for thirty (30) consecutive calendar days before said Employee becomes eligible for acting pay. Such pay will be retroactive to the first day the Employee assumes the responsibility of the position.

ARTICLE 8. COMPENSATION: ANNUAL SALARY INCREASE

A. On January 1, 2020, each Employee shall receive an Annual Salary Increase in the amount of three and one-half percent (3.5%) of that Employee's 2019 gross salary, as reflected by the City's payroll records.

B. On January 1, 2021, each Employee shall receive an Annual Salary Increase in the amount of three and one-half percent (3.5%) of that Employee's 2020 gross salary, as reflected by the City's payroll records.

C. On January 1, 2022, each Employee shall receive an Annual Salary Increase in the amount of three and one-half percent (3.5%) of that Employee's 2021 gross salary, as reflected by the City's payroll records.

D. Each Employee who has reached the maximum pay level within her or his

pay grade range will receive the above-described amounts in the form of single, lump sum payments on or before January 5 of 2020, 2021, and 2022, in place of an Annual Salary Increase.

ARTICLE 9. LONGEVITY COMPENSATION

Effective January 1, 1984, and thereafter, all new hires shall not be eligible for longevity compensation.

ARTICLE 10. DIFFERENTIAL PAY

A. In addition to their regular rate of pay, Employees who regularly work a Second Shift, or Third/Overnight Shift shall receive payment of an additional amount per hour for working that shift ("Differential Pay") as follows:

1. Second Shift: \$1.50 per hour
2. Third /Overnight Shift: \$2.00 per hour

B. "Second Shift" means the second scheduled shift commencing after 7:00 a.m., but not earlier than 12.45 p.m., Mountain Time, in any 24-hour period.

C. "Third /Overnight Shift" means the third scheduled shift commencing after 7:00 a.m., but not earlier than 7:00 p.m., Mountain Time, in any 24-hour period.

D. Employees who regularly work a Second Shift or Third/Overnight Shift shall also be paid shift differential consistent with the rates in part A (1) & (2) for working portions of Second or Third/Overnight shifts.

E. Employees who are not regularly assigned to Second or Third/Overnight shifts, but who nevertheless periodically perform work outside their scheduled hours will receive Differential Pay as follows:

1. For each hour, or fraction thereof, of work the Employee performs outside her or his regularly scheduled work hours, and between the hours of 5:00 p.m. and 9:00 p.m., Mountain Time, the Employee will receive Second Shift Differential Pay, as described above.

2. For each hour, or fraction thereof, of work the Employee performs outside her or his regularly scheduled work hours, and between the hours of 9:00 p.m. and 6:00 a.m., Mountain Time, the Employee will receive Third Shift Differential Pay, as

described above.

F. Notwithstanding Sections A through D, above, an Employee who (i) is regularly scheduled to commence work at or before 6:00 a.m., Mountain Time; and (ii) is periodically required to commence work before her or his scheduled start time and before 6:00 a.m. Mountain Time will receive Third Shift Differential Pay for each hour, or fraction thereof, the Employee works prior to her or his scheduled start time and before 6:00 a.m. Mountain Time.

G. By way of an example, if an Employee is regularly scheduled to commence work at 6:00 a.m., but is called in to remove snow commencing at 5:00 a.m., the Employee will receive one (1) hour of Third Shift Differential Pay.

H. Differential Pay shall not be included in an Employee's regular rate of pay for purposes of calculating Overtime Pay in accordance with Article 6.

ARTICLE 11. PAID TIME OFF

This Article 11 is intended to replace the former program of Annual Leave and Personal Leave, provided for in the Prior Contract, with a Paid Time Off ("PTO") Program as follows:

A. The Annual Leave and Personal Leave Programs provided for in the Prior Contract (collectively, the "Prior Leave Programs") are terminated effective January 1, 2020.

B. The Prior Leave Programs are hereby replaced by a single Paid Time Off Program (the "PTO Program").

C. Although no additional Annual Leave and Personal Leave will accrue after December 31, 2019 (the "Termination Date"), Employees will not lose the value of their accrued but unused Annual Leave after the Termination Date. Employees will also benefit from up to twenty-four (24) hours of Personal Leave awarded prior to January 1, 2020, which will be converted to Annual Leave on December 31, 2019. The carry over and use of Annual Leave and Personal Leave are addressed in Sections (F) and (G), below.

D. As of January 1, 2020, Employees will accrue PTO as follows during each pay period of the Contract term:

Length of Service	Maximum PTO accrual per year	PTO accruals per pay period	Maximum Annual PTO Carry Over
0 – 4 years	88 hours	3.385 hours	120 hours

5 – 9 years	128 hours	4.924 hours	160 hours
10 + years	168 hours	6.462 hours	200 hours

E. In each year of this Contract, Employees will be permitted options regarding the PTO they accrue, but do not use, that exceeds the Maximum Annual PTO Carry Over identified above (the "Excess PTO"). Those options are as follows:

1. The Employee may accept payment, in cash, equal to the value of her or his Excess PTO; or

2. The Employee may defer the value of her or his Excess PTO into the City's Section 457 Retirement Savings Plan (the "Plan"), up to the limit permitted by the Internal Revenue Code. By way of example, for Calendar Year 2019, that limit is \$19,000 for Employees under age 50, and \$25,000 for Employees 50 and older.

3. An Employee will have the opportunity to use both of the above-described options, in combination, up to the maximum levels permitted by applicable law.

4. Each Employee will advise the City of the Employee's allocation of her or his Excess PTO, between payment in cash and deferral into the Plan, not later than January 31 of each Contract Year. Should an Employee fail to advise the City of the Employee's allocation, the Employee shall receive a payment in cash.

5. By way of example, each Employee will advise the Human Resources Department by January 31, 2021 how to allocate her or his Excess PTO for 2020 between a cash payment and deferral into the Plan.

6. For each Contract Year, the City will make cash payments to Employees in accordance with Section (E) (1) above, or deferrals into the Plan in accordance with Section (E) (2) above, on or before March 15 of the following Contract Year.

7. Excess PTO accrued during 2022 will be subject to this Section 5. As a consequence, each Employee will advise the City of the Employee's allocation of her or his 2022 Excess PTO, between payment in cash and deferral into the Plan, not later than January 31, 2023. Should an Employee fail to advise the City of the Employee's allocation, the Employee shall receive a payment in cash on or before March 15, 2023.

F. With respect to an Employee's Annual Leave accrued but unused as of December 31, 2019, the Employee will, not later than January 31, 2020, select from among one, or a combination, of the following options:

1. Retain all or a portion of the Annual Leave for use as paid leave during the Contract Term, with any Annual Leave remaining at the conclusion of the

Contract Term being forfeited;

2. Defer all or a portion of the Annual Leave into the Plan, up to the maximum permitted by applicable provisions of the Internal Revenue Code, with such deferment to be implemented not later than March 15, 2020; or

3. Accept payment, in cash, of the value of the Annual Leave, reduced by all applicable payroll withholding taxes, on or before March 15, 2020.

G. With respect to Personal Leave:

1. Each Employee will be awarded Personal Leave on November 1, 2019, as provided in the Prior Contract.

2. Between November 1, 2019 and December 31, 2019, each Employee may use Personal Leave as permitted under the Prior Contract.

3. On December 31, 2019, up to twenty-four (24) hours of unused Personal Leave will be converted to Annual Leave for each Employee. This Annual Leave will then be addressed as provided in Section 6, above. No other Personal Leave will carry over from the Prior Contract into this Contract term.

ARTICLE 12. SICK LEAVE & SALARY CONTINUATION

The Parties intend that "Short-Term Disability" Leave ("STD"), as described in Article 12 of the Prior Contract, shall be discontinued and replaced by the Sick Leave and Salary Continuation programs described in this Article.

STD shall not accrue, and, except as expressly provided for herein, may not be used, after December 31, 2019.

Notwithstanding the termination of STD, an Employee who is absent from work due to injury or illness, and who has been authorized for and is using STD, on December 31, 2019 shall be permitted to carry over up to twenty-four (24) hours of unused STD for use during the first ten (10) days of January 2020 in order to address that same illness or injury.

By way of example, an Employee who is absent from work due to illness covered by authorized STD on December 31, 2019 shall be permitted to receive up to 24 hours of STD pay during the first ten (10) days of January 2020 to seek treatment and otherwise recover from that same illness. Upon exhausting the carry over STD, the Employee will use Sick Leave and Salary Continuation, as described below, to address any further illness or injury.

I. Sick Leave

A. Commencing January 1, 2020, each Employee shall receive ninety-six (96) hours of Sick Leave on January 1 of each Contract year.

B. Sick Leave shall be scheduled and administered by the Employee's Department Director or Supervisor.

C. An Employee who regularly works scheduled shifts shall notify her or his Supervisor at least one (1) hour prior to her or his scheduled reporting time of the need to be absent due to illness or injury.

D. Unused Sick Leave does not accrue, cannot be carried over to the following year, and is not paid out at separation.

E. Sick Leave is based on Employees' work schedules and must be taken in increments of not less than one (1) hour.

F. An Employee who requires more than three (3) consecutive days of Sick Leave must present the Employee's Department Director a health care provider's written verification that the Employee is injured or ill.

G. Sick Leave shall be available for the following purposes:

1. For an Employee to address her or his own mental or physical illness or injury not arising from employment with the City;

2. For an Employee to attend medical or dental appointments;

3. For an Employee to attend her or his children's medical or dental appointments; or

4. For an Employee to care for an Immediate Family Member who is injured or ill.

H. Pregnancy

1. Sick Leave under this Article 12 shall be available to an Employee for the purpose of addressing any medical issue related to the Employee's pregnancy.

2. Likewise, Sick Leave under this Article 12 shall be available to an Employee for the purpose of addressing any medical issue related to the Employee's spouse's pregnancy.

II. Salary Continuation

A. Commencing January 1, 2020, each Employee covered by this Contract will become eligible for up to ninety (90) days of continued full or partial salary should the Employee, or an Immediate Family Member of an Employee, become seriously ill or disabled.

1. The Employee shall be entitled to continued payment of her or his full salary in accordance with this Article in the event that the Employee becomes seriously ill or disabled as a consequence of circumstances not related to City employment. A serious illness shall include a complication of the Employee's pregnancy.

2. The Employee shall be entitled to continued payment of fifty percent (50%) of her or his salary in accordance with this Article in the event that an Immediate Family Member of that Employee becomes seriously ill or disabled. A serious illness shall include a complication of the Employee's spouse's pregnancy.

B. In order to access Salary Continuation, the Employee must have been absent from work for a period of not less than forty consecutive (40) work hours immediately preceding the Salary Continuation Period (the "Elimination Period"). By way of example, an Employee who regularly works ten-hour shifts must be absent from work due to an illness or injury, or due to an Immediate Family Member's illness or injury, for four (4) consecutive work days in order to become eligible for Salary Continuation.

C. An Employee must use available Sick Leave during the Elimination Period. Should the Employee lack Sick Leave to cover the Elimination Period, she or he may use any combination of available PTO, Compensatory Time Off, Holiday Leave, or Donated Leave, or, if no other paid leave is available, may take Leave of Absence Without Pay, in order to satisfy the Elimination Period.

D. The Employee's request to access salary continuation must be accompanied by appropriate medical documentation, issued by a healthcare provider, of a serious illness or disability.

III. Intermittent Leave

A. An Employee who has been diagnosed with a "Serious Health Condition," as that term is defined at 5 U.S.C. § 6381 (the Family and Medical Leave Act), may access the Salary Continuation program for up to thirty (30) days of Intermittent Leave to address that condition under the following circumstances:

1. The Employee's treating healthcare provider has recommended Intermittent Leave for the Employee.

2. The Employee has exhausted not less than forty (40) hours of Sick

Leave, or a combination of any available leave, during the Contract year as a consequence of the Serious Health Condition.

B. An Employee who satisfies the criteria described above may access up to thirty (30) days of Salary Continuation on an intermittent basis through the end of the Contract year.

C. Intermittent Leave will be available exclusively for an Employee to address her or his own Serious Health Condition. It does not extend to Immediate Family Members.

D. By way of example, an Employee is diagnosed with PTSD as a consequence of active duty military service. The Employee's treating neurologist and psychiatrist recommend that the Employee be permitted to take one day off from work when she experiences a significant panic attack, which typically occur with little warning and resolve within 24 hours. In July, the Employee has used 40 hours of Sick Leave to address this condition. She provides the City her treating healthcare providers' statements that she is expected to continue experiencing panic attacks and will benefit from continuing access to Intermittent Leave. She may then access the Salary Continuation program on an intermittent basis for up to 30 days of leave to address her chronic, Serious Health Condition through the end of the Contract Year.

IV. Sick Leave Option

Nothing in this Agreement shall alter the terms of the Sick Leave Option set forth in Article 12 of the Prior Contract, which applies exclusively to Sick Leave accrued by permanent Employees prior to January 1, 1980.

ARTICLE 13. WORKERS' COMPENSATION

For any on-the-job injury, which causes an Employee to be absent from work as a result of such injury, the City shall pay to such Employee her or his full wages from the first day of her or his absence from work up to and including the 90th calendar day of such absence, less whatever sums the Employee receives as disability benefits under the Workers' Compensation program. The City requires any Employee on workers' compensation to submit to an examination(s) by City-appointed physician(s) at the City's expense or under the provision of the Workers' Compensation program. If the injury or illness results in an absence of over 90 days, the Employee may request to supplement the 66 & 2/3% wage benefit granted by the Workers' Compensation program with PTO, Compensatory Time Off, or Holiday Leave.

All workers' compensation injuries shall be reported to the Employee's supervisor before the Employee leaves her or his department of employment on the day of the injury, or, if

immediate reporting is not feasible, within 24 hours of the injury occurring.

ARTICLE 14. MILITARY LEAVE

The authority for this policy is derived from the provisions of the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA), and C.R.S. §§ 28-3-601 through 28-3-607.

A. The City is obligated to grant Military Leave without loss of pay for absences not exceeding fifteen (15) days in any calendar year. Fifteen (15) days equates to fifteen 8-hour days, or 120 hours. The City cannot require an Employee to use PTO, Compensatory Time Off, or Holiday Leave for such purposes. The Employee may, however, request use of PTO, Compensatory Time Off, Holiday Leave, or a Leave of Absence Without Pay for absences exceeding those covered by the fifteen (15) day Military Leave allowance.

B. Military Leave will not result in the loss of any benefit of employment that would have normally accrued if the Employee had not been absent for military service.

C. Employees are responsible for providing their department directors copies of all military orders that will result in a leave of absence for active military duty. Employees are also required to notify their supervisors at the earliest possible date upon learning of scheduled military duty.

D. Employees who fail to return to work in accordance with the provisions of USERRA and C.R.S. §§ 28-3-601 through Section 28-3-607 are subject to disciplinary action up to and including termination.

E. Employees must remit to the City any pay received from the military for the period of time the Employee is on paid Military Leave. This remittance shall occur immediately upon receipt of the military pay. In instances that the military pay is greater than the Employee's City pay, the Employee may elect to forego City paid Military Leave and may retain her or his military pay.

F. The City will make a reasonable effort to adjust work schedules and assignments to accommodate Employees fulfilling military obligations.

ARTICLE 15. FUNERAL LEAVE

Employees are eligible for up to forty (40) hours of Funeral Leave. Funeral leave applies with respect to the death of an Employee's Immediate Family Member each Contract Year.

ARTICLE 16. JURY DUTY AND WITNESS SERVICE

A. Leave will be granted to an Employee called for jury duty or to appear as a witness in her or his official capacity in obedience to a subpoena or other direction by legal authority. The Employee will receive her or his regular salary for jury duty served. Any jury pay will be reimbursed to the City. The Employee may retain any reimbursements for mileage and parking. Employees on jury duty or called as a witness in their official, City capacity will be expected to work as much of their regularly scheduled workday as their jury duty schedule or appearance in court permits.

B. When an Employee is subpoenaed as a witness in private litigation -- not in her or his official capacity, but as an individual -- the Employee must use available leave to cover the time she or he will be absent from work. All available paid leave must be exhausted before the time absent can be taken as a Leave of Absence Without Pay.

C. Employees will not receive Overtime Pay or earn Compensatory Time Off for time served as a juror or a witness.

D. An Employee must return to work after being excused from jury duty if there are more than two (2) hours left in their regularly scheduled workday.

ARTICLE 17. HOLIDAYS, HOLIDAY PAY & ENHANCED HOLIDAY PAY

A. The following days shall be Holidays recognized by the City:

:

1. New Year's Day: January 1.
2. Martin Luther King Day: the third Monday in January.
3. President's Day: the third Monday in February.
4. Memorial Day: the last Monday in May.
5. Independence Day: July 4.
6. Labor Day: the first Monday in September.

7. Veteran's Day: November 11.
8. Thanksgiving Day: the fourth Thursday in November.
9. Fourth Friday of November following Thanksgiving Day.
10. Christmas Eve: December 24.
11. Christmas Day: December 25.
12. New Year's Eve Day: December 31.

B. Any Employee who is absent from work, without approved, paid leave, on either the work day immediately before or immediately after a Holiday shall not receive Holiday Pay for that Holiday.

C. Holidays include the 24-hour period commencing at 12:00 a.m. Mountain Time and concluding at 11:59 p.m. Mountain Time on the Holiday.

D. Each Employee who is not scheduled to work on a Holiday will be paid an amount equal to 8 hours of Holiday Pay for the Holiday, calculated using the Employee's regular rate of pay.

E. Each Employee scheduled to work on a Holiday, who actually works during the Holiday as scheduled, may choose:

1. To receive payment equal to two-and-one-half times the Employee's regular rate of pay ("Enhanced Holiday Pay") for each hour the Employee actually works on the Holiday; or

2. To receive Overtime Pay, as described in Article 6, for each hour, or portion thereof, the Employee actually works during the Holiday, and 8 hours of Holiday Leave, which the Employee may take at a later date, as approved by the Employee's supervisor. An Employee may not accumulate more than 40 hours of Holiday Leave at any one time. Accumulated, but unused, Holiday Leave will not be paid out to an Employee upon separation from City employment.

ARTICLE 18. UNIFORM ALLOWANCE

A. When the City determines (1) that immediate visual identification of a City Employee through appearance in a City approved uniform is appropriate, or (2) that a uniform is necessary in order for an Employee to fulfill specific job duties, the City will provide the Employee an allowance with which to purchase authorized uniform items.

The allowance will be in an amount determined by the Employee's Department Director, as set forth in the Department budget, and shall be sufficient to cover the reasonable cost associated with the required uniform, except that any allowance for work shoes shall be set at a minimum of \$200.00.

B. The City will cover the costs of routine uniform cleaning and replacement, as determined to be necessary by Department Directors.

C. Employees will wear their City uniforms only while on duty, or in connection with approved activities directly related to their City employment.

ARTICLE 19. TUITION REIMBURSEMENT/DEGREE ACHIEVEMENT RECOGNITION

See Administrative Policy Manual, Policy 9.1 (Tuition Reimbursement/Degree Achievement Recognition)

ARTICLE 20. LIFE INSURANCE

The City will provide access to term life insurance for each Employee in the amount of one time her or his annual salary. Upon separation from employment, the Employee may convert the life insurance per the life insurance plan conversion agreement in place at the time of her or his separation from employment.

ARTICLE 21. INSURANCE

A. MEDICAL

1. The City will pay ninety percent (90%) of the premium cost for "Employee-Only" coverage; eighty five percent (85%) of the premium cost for "Employee-Plus-One" coverage; and eighty percent (80%) of "Family" coverage for the medical insurance plan designated as the basic City plan. Employees will pay 10%, 15%, or 20% of the premium cost, depending on the level of coverage they select.

2. If the City offers any optional medical insurance plan(s), the Employee will pay the difference between the City's contribution described above and the premium cost of the optional plan, if any, the Employee selects.

B. DENTAL

With respect to any dental insurance plan the City offers to Employees, the City

will pay for each Employee:

1. Ninety percent (90%) of the premium cost for Employee coverage;
2. Eighty five percent (85%) of the premium cost for Employee-Plus-One coverage; and
3. Eighty percent (80%) of the premium cost for Family coverage.

Employees will pay either ten percent (10%), fifteen percent (15%), or twenty percent (20%) of the premium cost for dental insurance, depending on the level of coverage they select.

Any dispute concerning the interpretation or application of benefits provided under the health or dental plans shall be subject to the plan appeal process. It is expressly understood that this Article is a non-grievable item under this Contract.

ARTICLE 22. RETIREE HEALTH INSURANCE ASSISTANCE

Retirees will be guaranteed conversion privileges to the Health Insurance Conversion Plan available through the City. For those who retired prior to December 31, 1996, the City will pay \$50 per month. For those who retired after January 1, 1997, the City will pay \$75 per month. For those who retired on or after January 1, 2010, the City will pay \$100 per month. For purposes of this Article, "retiree" shall be defined as all Employees who separate from the City at age 55 or older and have completed at least 15 years of continuous, permanent, full-time service immediately preceding the date of separation.

See Administrative Policy Manual, Policy 9.2 (Retiree Health Assistance).

ARTICLE 23. PENSION/RETIREMENT PLANS

The pension plan description for Employees covered by this Contract is set forth in Title III, Chapter 4 of the Municipal Code. Additionally, the plan description for the Nonemergency Employees Retirement Plan is available for inspection in the Department of Finance and Administrative Services.

ARTICLE 24. LAYOFF

A. Whenever there is lack of work, lack of funds, or under conditions where it is determined that continued work would be inefficient or nonproductive, requiring reductions in the number of Employees, the appointing authority shall designate the department and

positions in which the layoff is to be made. In identifying individual Employees to be laid off, the appointing authority shall consider the relative ability of all Employees within the position classification, taking into account the Employee's documented performance history, and then seniority with the City.

B. Employees laid off shall be put on a recall list for one year following their layoff. Employees recalled from layoff into the same job classification shall be recalled in inverse order of layoff. If they are recalled into a different position, those recalled must have the demonstrated ability and qualifications to perform the available work as determined by the City. No new Employees shall be hired into positions covered by this Contract until all Employees on layoff status desiring to return to work have been recalled.

C. Employees identified for layoff shall have the right to displace an Employee in any position classification which the Employee formerly held in the department, taking into account both the Employees' documented performance history, demonstrated ability and then seniority with the City. The Employee ultimately displaced shall then be the person laid off unless that Employee in turn has effective displacing rights under the provisions of this Article.

ARTICLE 25. LEAVE OF ABSENCE WITHOUT PAY

A. After twelve months of continuous service and upon approval of the department director, in concurrence with the Human Resources Director, Employees may be granted a Leave of Absence Without Pay of up to one year for compelling personal reasons not related to Family and Medical Leave reasons.

B. All accrued, paid leave must be exhausted before the beginning of the Leave of Absence Without Pay. Employees on such Leave do not accrue PTO or Sick Leave, and do not have access to Salary Continuation under Article 12. Employees on Leave of Absence Without Pay are not eligible to accrue or use Holiday, Jury & Witness, Military, or Funeral Leave. When an Employee is on a Leave of Absence Without Pay, she or he will remain in the City health and dental insurance plans, provided the full premium is paid by the Employee.

C. The Employee may retain the benefit accrual rate they were eligible for at the beginning of the Leave of Absence Without Pay, provided the Employee returns to work with the City on the agreed upon date. Upon return, the Employee's hire date will be adjusted if the Leave has exceeded thirty (30) calendar days.

D. An Employee who engages in other employment, including self-employment, while on Leave of Absence Without Pay, will be terminated effective as of the last day worked, unless prior written approval has been obtained from the Human Resources Department.

E. Employees on a Leave of Absence Without Pay, who fail to report for work by the first day after the expiration date of that Leave, or fail to obtain a properly approved extension of that Leave, will be terminated from their employment with the City as of the last day actually worked.

ARTICLE 26. GRIEVANCE PROCEDURE

A grievance is a misinterpretation, misapplication, or violation of one or more provisions of this Contract alleged by one or more Employees.

An Individual Grievance is a grievance asserted by a single Employee.

A General Grievance is a grievance asserted by two or more Employees. A General Grievance may only be filed by the Association within the time frame specified in Step 4 (B) of this Article.

"Work Day" means calendar days exclusive of Saturdays, Sundays, and City Holidays.

Step 1 – Discussion of Individual Grievance with Supervisor

An Employee must commence an Individual Grievance by orally and informally advising her or his immediate supervisor of the grounds for the Grievance within five (5) Work Days of the date upon which the events that gave rise to the Grievance allegedly occurred, or the date upon which the Employee first became aware of those alleged events. The Employee's immediate supervisor shall then have up to five (5) Work Days to orally and informally respond to the Employee's Individual Grievance.

Step 2 – Submission of Written Individual Grievance to Supervisor

If Step 1 does not result in resolution of the Individual Grievance to the Employee's satisfaction, then the Employee may, within five (5) Work Days following the Employee's receipt of her or his immediate supervisor's response, submit a written statement describing the grounds for the Grievance, the relevant Article or Articles of this Contract, and the Employee's proposed resolution of the Grievance, to the supervisor. The Employee's immediate supervisor shall then have up to five (5) Work Days within which to respond to the Employee's Individual Grievance in writing.

Step 3 – Submission of Written Individual Grievance to Department Director

If the immediate supervisor's written response submitted to the Employee in accordance with Step 2 does not resolve the Employee's Individual Grievance to the Employee's satisfaction, the Employee may, within five (5) Work Days of receiving that response,

submit a written statement describing the grounds for the Grievance, the relevant Article or Articles of this Contract, and the Employee's proposed resolution of the Grievance, to the Employee's Department Director. The Employee's Department Director shall then have up to five (5) Work Days within which to respond to the Employee's Individual Grievance in writing.

Step 4 – Written Grievance Submitted to City Manager

A. In the case of an Individual Grievance, if the Department Director's written response submitted to the Employee in accordance with Step 3 does not resolve the Employee's Individual Grievance to the Employee's satisfaction, the Employee may, within five (5) Work Days of receiving that response, submit a written statement describing the grounds for the Grievance, the relevant Article or Articles of this Contract, and the Employee's proposed resolution of the Grievance, to the City Manager. Within ten (10) Work Days of receiving the Employee's written Statement, the City Manager, or her or his designated hearing officer, shall meet with the Employee to review the Grievance and relevant information the Employee desires to present. Within ten (10) Work Days of that meeting, the City Manager, or the designated hearing officer, will issue a written response to the Employee's Individual Grievance.

B. In the case of a General Grievance, the Association may initiate that Grievance by submitting a written statement describing the grounds for the General Grievance, the relevant Article or Articles of this Contract, and the Association's proposed resolution of the Grievance, to the City Manager. The City Manager, or her or his designated hearing officer, shall then, within ten (10) Work Days of receiving the Grievance, meet with up to three (3) Association Representatives to review the Grievance and relevant information the Association desires to present. Within ten (10) Work Days of that meeting, the City Manager, or the designated hearing officer, will issue a written response to the Association's General Grievance.

Step 5 – Arbitration

A. If the City Manager's, or the designated hearing officer's, response issued in accordance with Step 4 does not resolve the Individual Grievance or the General Grievance, then the Employee, in the case of an Individual Grievance, or the Association, in the case of a General Grievance, may, within fifteen (15) Work Days following receipt of the City Manager's, or the designated Hearing Officer's, response, request the Grievance be submitted to arbitration.

B. The City and the Employee, in the case of an Individual Grievance, or the Association, in the case of a General Grievance, will attempt, in good faith, to choose a mutually agreeable arbitrator. If, within fifteen (15) Work Days of the request for arbitration, the Association and the City cannot mutually agree on an arbitrator the Parties will file a joint request with the American Arbitration Association for designation of a panel

of seven (7) proposed arbitrators. If the Parties cannot agree on one of the proposed arbitrators, they shall then select the arbitrator by alternative striking of names from the panel, with the first strike made by the Employee or the Association. The final name left on the panel shall be the arbitrator.

C. If neither Party requests a hearing, the Parties shall submit written position statements to the arbitrator within 30 calendar days of the arbitrator's acceptance of appointment. The arbitrator shall then issue a written determination within 30 calendar days of receiving the Parties' written position statements.

D. If one, or both, of the Parties requests a hearing:

1. the Parties shall set an initial conference with the arbitrator within 10 calendar days of the arbitrator's acceptance of appointment;

2. the Parties and the arbitrator shall schedule the hearing to commence not more than 45 calendar days following the initial conference; and

3. the arbitrator shall issue a written determination not more than 45 days following the conclusion of the hearing.

E. Each Party shall be responsible for compensation to its own representatives and witnesses. The fees of the arbitrator shall be borne equally by the Association and the City.

Authority of Arbitrator

A. The arbitrator shall have no power to add to, subtract from, or change the terms of this Contract.

B. The written decision of the arbitrator shall be final and binding upon the Parties.

C. The arbitrator shall limit her or his decision strictly to the grievance submitted and properly processed through the grievance procedure outlined.

D. Failure by an Employee or the EEA to comply with any time limitation shall constitute a settlement of the grievance.

E. Should the City not respond within the prescribed time, the grievance will automatically proceed to the next step. At the Employee's, or, in the case of a General Grievance, the Association's, option, the City may be allowed additional time to respond.

Grievances may be investigated and processed by the Employee or designated

Employee representative during working hours, within reasonable time limits, without loss of pay, provided notice is given and the workload permits.

ARTICLE 27. CORRECTIVE SUPERVISION

A. Whenever a supervisor deems it appropriate, she or he shall provide an Employee direction regarding the correction of particular conduct or of the Employee's performance of particular job duties ("Corrective Supervision"). The supervisor's Corrective Supervision may be verbal or written and shall be formulated so as to facilitate the Employee's improvement. Corrective Supervision shall not be punitive and shall not constitute discipline.

B. If the supervisor determines that it is appropriate to provide an Employee written Corrective Supervision, the supervisor shall schedule a meeting with the Employee and shall provide the Employee not less than three work days' notice of that meeting.

C. An Employee may request to be accompanied in a Corrective Supervision meeting by another Employee. The Employee's supervisor shall determine whether to grant the Employee's request, taking into account the nature of the Corrective Supervision, as well as the Employee's particular circumstances.

D. An Employee who reasonably believes that a particular Corrective Supervision meeting will result in discipline may request that the meeting be suspended and that notice be provided in accordance with Article 4.

E. Actions taken by the City in accordance with this Article shall not be grievable.

ARTICLE 28. EEA DUES DEDUCTION

A. The City agrees to deduct EEA dues each pay period from the pay of those Employees who individually request in writing that such deductions be made, subject to the garnishment laws of the State of Colorado. The amounts to be deducted shall be certified to the Human Resources Department by the EEA Treasurer, and the aggregate deductions of all Employees shall be remitted together with an itemized statement to the Treasurer by the 15th of the succeeding month, after such deductions are made. The authorization shall be revocable during the term of the Contract, upon written notice by the Employee to the Human Resources Department.

B. If no wages are paid to an Employee authorizing such deductions in any given pay period, deduction for that pay period(s) will be made from any wages which may be paid to him/her in the succeeding pay period(s). It is expressly understood that the City assumes no liability, and shall not be liable, for the collection or payment to the EEA of any dues during any time that an Employee is not actually working for the City and actually on the payroll of the City. In the event of error on the check-off list, the City will not be responsible to make adjustments until notified by the EEA Treasurer.

C. The EEA shall indemnify and hold the City harmless against any and all claims, suits, orders, or judgments brought or issued against the City as a result of any action taken or not taken by the City under the provisions of this Article.

D. Changes in the dues amount to be deducted shall be limited to two (2) changes each year, provided a thirty (30) day written notice is provided to the Human Resources Department.

E. Should the change in the deduction method require a computer programming change, the EEA shall be responsible for the cost of such change or changes, at \$30 per hour with a four (4) hour maximum. Payment from the EEA shall be made to the City Finance and Administrative Services Director within ten (10) days of receipt of billing.

ARTICLE 29. ASSOCIATION ACTIVITIES

A. The City agrees that, during working hours, on the City premises, and without loss of pay, EEA member Employees may:

1. Attend two (2) EEA membership meetings annually.

a. The City, however, retains the right to maintain appropriate staffing levels as determined by the department director and will not be required to pay Overtime Pay or award Compensatory Time Off necessitated by attendance at the meeting. Employees may be called back from such meetings to address emergencies.

b. Additional membership meetings may be called to address issues of general interest. If these additional meetings are held during Employees' work shifts, the City retains the right to either approve or disapprove attendance on City time (i.e., during times other than Employees' lunch and break periods).

c. Notice of such meetings, specifying whether the meeting is biannual or general interest, will be provided to directors, managers and supervisors two weeks in advance, unless it is mutually agreed to waive this provision

2. Post EEA notices on City designated bulletin boards;
3. Solicit EEA memberships during Employee's non-work time.

B. Additionally, the Association may call monthly meetings of its board, to be held during the board members' lunch periods. One (1) weeks' notice will be given to supervisors if the meetings are expected to exceed the lunch periods.

C. Board members may also be allowed to represent Employees on grievances and will be allowed to represent Employees at labor management committee meetings and in contract negotiations. During negotiations, EEA negotiation team members may meet during work hours to discuss issues with appropriate notice given to directors, managers and supervisors. The EEA team shall not exceed eight (8) Employees.

ARTICLE 30. STANDBY PAY

Standby pay is defined as compensation for Employees who must be immediately available to respond while off duty. All Employees assigned standby duty shall be compensated at a rate of two (2) hours per day of the Employee's regular rate of pay.

Standby pay shall not be substituted with Compensatory Time Off.

ARTICLE 31. CALL BACK PAY

Any time an Employee on off-duty status (including stand-by duty) is called back to work, he/she shall be credited with a minimum of two (2) hours' pay at the rate of one and one-half (1-and-1/2) times his/her regular hourly rate.

With the approval of the Department Director and, subject to departmental guidelines, the Employee may choose to substitute Compensatory Time Off for Call Back Pay.

ARTICLE 32. LABOR MANAGEMENT COMMITTEE

A Labor-Management Committee consisting of four (4) Employees appointed by the EEA and four (4) employees appointed by the City shall meet on a quarterly basis. The Committee will only deal with group issues that are not dealt with through other existing committees or grievance procedures. The EEA will send its agenda items to the Human Resources Director at least one (1) week prior to the date of the quarterly meeting.

City policy changes will be presented at quarterly Committee meetings. Emergency

policy changes will be immediately forwarded to the EEA for distribution.

ARTICLE 33. EXCLUSIVENESS OF CONTRACT

The City and the EEA agree that the terms and conditions herein contained constitute the entire Contract between the Parties. The City and the EEA agree that all negotiable items have been discussed during the negotiations leading to this Contract and, therefore, agree that negotiations will not be reopened on any item during the term of this Contract, except by mutual agreement of the Parties.

The City of Englewood, through its authorized representative whose signature appears below, accepts the terms and conditions of this Collective Bargaining Agreement for the period January 1, 2020 through December 31, 2022.

THE CITY OF ENGLEWOOD, COLORADO

By:

Signature

Date

Printed Name

Title

The Englewood Employees Association, through its authorized representative whose signature appears below, accepts the terms and conditions of this Collective Bargaining Agreement for the period January 1, 2020 through December 31, 2022.

ENGLEWOOD EMPLOYEES ASSOCIATION

By:



Signature

Date

7-30-19



Printed Name

EEA President

Title